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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA – WESTERN DIVISION

CARLY JEANNE OLSZEWSKI,

Plaintiff,

vs.

U.S. DEPARTMENT OF JUSTICE FEDERAL
BUREAU OF PRISONS; NICOLAS CARL
KENDRYNA, an individual; and DOES 1 to 50,
Inclusive,

Defendants.

Case No.: 2:22-CV-02767

COMPLAINT FOR NEGLIGENCE

COMPLAINT

COMES NOW Plaintiff, CARLY JEANNE OLSZEWSKI, by and through the undersigned attorney, and sues Defendants, U.S. DEPARTMENT OF JUSTICE FEDERAL BUREAU OF PRISONS, NICOLAS CARL KENDRYNA and DOES 1 to 50, Inclusive ("Defendants"), and alleges:

1 1. This is a claim for damages that exceeds Seventy-Five Thousand Dollars
2 (\$75,000.00).

3 2. The claim against Defendants is brought pursuant to the Federal Tort
4 Claims Act, 28 U.S.C. Sections 2671-2680, Section 1346(b), Section 2401(b), and Section
5 1402(b).

6 3. This Court has jurisdiction pursuant to 28 U.S.C. Section 1356(b)(1) in that it
7 involves a claim for personal injury caused by the negligent or wrongful act or omission of an
8 employee of the United States.

9 4. All conditions precedent and prerequisites to filing suit have been met pursuant to
10 28 U.S.C. Section 2675. A Copy of the Claim for Damage, Injury or Death Form (Form SF 95)
11 is attached to this Complaint as Exhibit A. The U.S. DEPARTMENT OF JUSTICE FEDERAL
12 BUREAU OF PRISONS rejected Plaintiff CARLY JEANNE OLSZEWSKI's Claim for
13 Damage, Injury or Death on March 23, 2022.

14 5. On or about May 7, 2020, U.S. DEPARTMENT OF JUSTICE FEDERAL
15 BUREAU OF PRISONS worker NICOLAS CARL KENDRYNA was operating a vehicle
16 owned by U.S. DEPARTMENT OF JUSTICE FEDERAL BUREAU OF PRISONS on Highway
17 246 west of Sycamore Avenue in the City of Buellton, California.

18 6. At the aforementioned time and place, NICOLAS CARL KENDRYNA was
19 acting in the course and scope of his employment and/or duties as an employee/agent with U.S.
20 DEPARTMENT OF JUSTICE FEDERAL BUREAU OF PRISONS.

21 7. On information and belief, NICOLAS CARL KENDRYNA was and is a resident
22 of Reno, Nevada, and Plaintiff, CARLY JEANNE OLSZEWSKI was and is a resident of
23 Buellton, California hereto.

24 8. At the aforementioned time and place, the U.S. DEPARTMENT OF JUSTICE
25 FEDERAL BUREAU OF PRISONS vehicle driven by NICOLAS CARL KENDRYNA was
26 being negligently operated, thus causing a collision with Plaintiff, CARLY JEANNE
27 OLSZEWSKI, who was walking in a marked crosswalk.
28

COUNT I

**NEGLIGENCE AGAINST U.S. DEPARTMENT OF JUSTICE FEDERAL BUREAU OF
PRISONS; NICOLAS CARL KENDRYNA; AND DOES 1 to 50, INCLUSIVE**

9. Plaintiff realleges the foregoing general allegations contained in paragraphs 1 through 8 as if fully set forth herein.

10. At the time and place of the accident, NICOLAS CARL KENDRYNA negligently operated or maintained his U.S. DEPARTMENT OF JUSTICE FEDERAL BUREAU OF PRISONS vehicle so that it hit Plaintiff CARLY JEANNE OLSZEWSKI while she was in a marked crosswalk.

11. As a result, Plaintiff suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are either permanent or continuing and Plaintiff will continue to suffer the losses in the future.

12. Plaintiff therefore demands judgment against the Defendants, in excess of Seventy-Five Thousand Dollars (\$75,000.00).

DATED: April 11, 2022 DORDICK LAW CORPORATION

By: /s/ Robert Reagan
Gary A. Dordick, Esq.
Robert B. Reagan, Jr., Esq.
Attorneys for Plaintiff